

February 6, 2008



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 8523
(SIXTH REVISION)

EXPIRATION DATE: January 31, 2012

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Eurotainer SA
Puteaux Cedex, France
(U.S. Agent: Eurotainer U.S., Inc., Houston, TX)
(Former Grantee: Eurotainer SAS, Puteaux Cedex
France)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 2.1, 2.2 and 2.3 materials in a non-DOT specification IMO Type 5 portable tank. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.304a(a) and 173.315 except as specified herein.
5. BASIS: This special permit is based on the application of Eurotainer SAS dated February 6, 2008, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Ammonia, anhydrous	2.3	UN1005	N/A
Butane <i>see also</i> Petroleum gases liquefied	2.1	UN1011	N/A
Chlorodifluoromethane and chlorpentafluoroethane mixture or Refrigerant gas, R 502 with <i>fixed boiling point, with approximately 49 percent chlorodifluoromethane</i>	2.2	UN1973	N/A
Chlorodifluoromethane or Refrigerant gas R 22	2.2	UN1018	N/A
Chloropentafluoroethane or Refrigerant gas R 115	2.2	UN1020	N/A
Dichlorodifluoromethane or Refrigerant gas R 12	2.2	UN1028	N/A
Dichlorodifluoromethane and difluoroethane azeotropic mixture or Refrigerant gas, R 500 with <i>approximate 74 percent dichlorodifluoromethane</i>	2.2	UN2602	N/A
Isobutane <i>see also</i> Petroleum gases, liquefied	2.1	UN1969	N/A
Methyl chloride or Refrigerant gas R 40	2.1	UN1063	N/A
Propane <i>see also</i> Petroleum gases, liquefied	2.1	UN1978	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are non-DOT specification portable tanks, mounted in ISO frames, designed and constructed in accordance with Fauvet-Girel drawing CO166609, Rev. A., technical specifications and calculations on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA), and in compliance with the following:

- (1) Code-Complies with ASME Code (not marked)
- (2) Insulation-none
- (3) Water Capacity (U.S. Gallons) - 4,385
- (4) Material-steel A52FP - French Standard A36205
- (5) Tank size (outside dia) X (length) X (thickness)
(inches) 78.74 230.72 0.6614
Head Thickness-0.6654
Weld Joint Efficiency-1.0
Corrosion Allowance-0.0
- (6) Design Pressure (PSIG)-336.6
Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.
- (7) Test Pressure, Minimum (PSIG)-504.9
- (8) Openings - One - 3 inch safety device pad on top of One - 18-1/2 inch manhole in the head; One - 4 inch liquid phase and one - 4 inch gas phase outlet with quick closing valves in the bottom.
- (9) Tank surface area (square feet)-419
- (10) Safety Relief Devices-Two 2-1/2 inch safety relief valves in series with and outboard of one-3 inch rupture disc all set at 336.6. psig. Relief valve capacity is 1,530,000 SCFH.

Note: The relief device capacity represents 80% of the rated capacity of the two safety relief valves in accordance with paragraph UG-127 of Section VIII

Division 1 of the ASME Code. The actual capacity of the relief device may be determined by the test procedure of paragraph UG-132 of the ASME Code. The set pressure of the relief device may not exceed the 110% MAWP (see § 173.315(i)(3)).

(11) G-Loadings: Vertical down 2; Vertical up 1;
Longitudinal 2; and Transverse 1.

(12) Maximum Gross Weight (pounds)-61,729

(13) Maximum Commodity Weight (pounds)-45,199

(14) Tare Weight (pounds)-16,530

(15) Design Specific Gravity-1.24

(16) Maximum Specific Gravity-1.54

b. TESTING -

(1) Hydrostatic test certificates for each tank must be kept on file by the manufacturer at its principal business office and be made available to OHMSPA upon request.

(2) Each tank must be (a) visually inspected prior to each trip to ensure that it has not been damaged on the previous trip; and (b) visually inspected at least once every 2-1/2 years in accordance with the provisions of § 177.824; and (c) pressure tested at least once every 5 years at one and one-half times the design pressure.

c. OPERATIONAL CONTROLS -

(1) Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on contrasting background, "DOT-SP 8523".

(2) No product may be shipped that has venting requirements exceeding 1,530,000 SCFH, or has a specific gravity greater than 1.54. The venting capacity required for each product must be determined by the flow formulas contained in Compressed Gas Association (CGA) pamphlet S-1.2.

(3) The tank must be filled so as not to be liquid full at less than or equal to 130°F.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Transportation of Division 2.1 materials (flammable gases) and Division 2.3 (gases which are poisonous by inhalation) are not authorized a cargo vessel unless specifically authorized in the Hazardous Materials Table (§172.101).

Packagings permanently marked 'DOT-E 8523, prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 8523'.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.

10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this special permit.

b. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS:

- a. The owner of the tanks covered by this special permit must provide to the OHMSPA a list of all shippers who shipped under this special permit and a shipping experience report every six months from the effective date of this special permit. The shipping experience report must contain approximate number of shipments made during the previous six months and any difficulties encountered.
- b. The holder of this special permit, as identified in paragraph 1 above, must contact the OHMSPA immediately after any of the tanks covered by this special permit are sold to another party.

c. Shippers who ship under the terms of this special permit must report any incident involving loss of contents of the tanks described herein to the OHMSPA as soon as practicable.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln